

I V Aparajit vs M S Chandrika on 17 March, 2023

Author: B.Veerappa

Bench: B.Veerappa

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MFA No. 8707 of 2018
C/W MFA No. 4430 of 2018

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 17TH DAY OF MARCH, 2023

PRESENT

THE HON'BLE MR. JUSTICE B.VEERAPPA

AND

THE HON'BLE MR. JUSTICE VENKATESH NAIK T

MISCELLANEOUS FIRST APPEAL NO.8707 OF 2018 (FC)
C/W

MISCELLANEOUS FIRST APPEAL NO.4430 OF 2018 (FC)

IN M.F.A. NO.8707 OF 2018

BETWEEN:

SMT. CHANDRIKA M.S.
D/O. M.C. SUNDAR KUMAR,
AGED ABOUT 32 YEARS,
PADMAMBA NILAYA,
2ND BLOCK, 2ND STAGE,
NEAR BDA COMPLEX,
OPP: ANNPURNESHWARI TEMPLE,
BANGALORE - 560 072.
NOW WORKING AT GOVT. HIGHER PRIMARY
SCHOOL AS ASSISTANT TEACHER,
DODDATHEKA HALLI,
SIDLAGHATTA TALUK,

Digitally signed by
MAHALAKSHMI B M
Location: HIGH COURT

OF KARNATAKA

CHIKKABALLAPURA DISTRICT.

... APPELLANT

(BY SRI G.K. BHAT, SENIOR COUNSEL A/W
MS. SUDHA D., ADVOCATE)

AND:

SRI APARAJIT I.V.
S/O. I. VASUPAL,
AGED ABOUT 34 YEARS,
R/O. 3RD CROSS, SUBHASH NAGAR,
ARASIKERE TOWN,
HASSAN DISTRICT - 573 103.

... RESPONDENT

(BY SRI M.R. PATIL, ADVOCATE)

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MFA No. 8707 of 2018
C/W MFA No. 4430 of 2018

THIS MFA IS FILED UNDER SECTION 19(1) OF THE FAMILY COURTS ACT, AGAINST THE JUDGMENT AND DECREE DATED 23/04/2018, PASSED IN M.C.NO.77/2016, ON THE FILE OF THE PRINCIPAL JUDGE, FAMILY COURT, BENGALURU, DISMISSING THE COUNTER CLAIMED FILED BY THE RESPONDENT FOR RESTITUTION OF CONJUGAL RIGHTS.

IN M.F.A. NO.4430 OF 2018
BETWEEN:

I.V. APARAJIT,
AGED ABOUT 34 YEARS,
S/O. I. VASUPAL,
R/AT 3RD CROSS, SUBHASH NAGAR,
ARSIKERE - 573 103.

... APPELLANT

(BY SRI M.R. PATIL, ADVOCATE)

AND:

M.S. CHANDRIKA
AGED ABOUT 32 YEARS,
D/O. SUNDAR KUMAR,
PADMAMBA NILAYA,
2ND BLOCK, 2ND STAGE,
NEAR BDA COMPLEX,
OPP. ANNAPURNESHWARI TEMPLE,
NAGARBHAVI,
BENGALURU - 560 072.

NOW WORKING AT GOVERNMENT HIGH
PRIMARY SCHOOL AS ASSISTANT TEACHER,
DODDATHEKA HALLI,
SIDLAGHATTA TALUK - 562 105
CHIKKABALLAPURA DISTRICT - 562 101.

... RESPONDENT

(BY SRI G.K. BHAT, SENIOR COUNSEL A/W
MS. SUCHA D., ADVOCATE)

THIS MFA IS FILED UNDER SECTION 19(1) OF FAMILY COURT
ACT, AGAINST THE JUDGMENT AND DECREE DATED 23.04.2018
PASSED ON M.C.NO.77/2016 ON THE FILE OF THE PRINCIPAL
JUDGE, FAMILY COURT, BENGALURU, DISMISSING THE PETITION
FILED U/S.13(1)(ia)(ib) OF THE HINDU MARRIAGE ACT.

THESE APPEALS COMING ON FOR ORDERS THIS DAY,
B.VEERAPPA J., DELIVERED THE FOLLOWING:-

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MFA No. 8707 of 2018
C/W MFA No. 4430 of 2018

JUDGMENT

MFA No.8707/2018 is filed by Smt. Chandrika M.S. and MFA No.4430/2018 is filed by Sri. Aparajit I.V. against the impugned judgment and decree dated 23.04.2018 made in M.C. No.77/2016 on the file of the Principal Judge, Family Court at Bangalore, whereby, the Family Court dismissed the petition filed by the husband under the provisions of Section 13 (1)(ia) and (ib) of the Hindu Marriage Act, 1955 as well as the counter claim filed by the wife under the provisions of Section 9 of the Hindu Marriage Act, 1955 for restitution of conjugal rights. Hence, this two appeals are filed.

2. This Court by the order dated 01.02.2023, referred the matter to Bangalore Mediation Centre for amicable settlement on 14.02.2023 at 3.30 p.m.

3. The report of the Bangalore Mediation Centre is placed before the Court.

4. On perusal of the report, it depicts that both the parties have filed a memorandum of agreement under the provisions of Section 89 of the Code of Civil Procedure read with Rules 24 and 25 of the Karnataka Civil Procedure (Mediation) Rules, 2005 stating that the marriage between the parties was solemnized on 06.12.2012 at Sri. Gurusiddarameshwara Samudaya Bhavana, Arasikere as per Hindu rites and customs and out of wedlock, they have no children. It is agreed that the appellant and the respondent do not get along well and there was irretrievable break down of marriage and they have been living separately from February 2013 and there are no chances of reunion.

5. It is further stated that in view of the settlement arrived at between the parties, husband has agreed to pay a sum of Rs.5,00,000/- towards permanent alimony/maintenance to the wife in full and final settlement of all her claims. Both the parties have agreed that they have no claim whatsoever against each other either past, present or future and also have no claims over the movable/immovable properties belonging to each other either existing or to be acquired in future.

6. Both the parties have agreed to dissolve their marriage as prayed in M.C. No.77/2016 filed by the respondent/husband under Section 13(1) (i-a) and (i-b) of the Hindu Marriage Act and the wife has agreed that the petition filed under Section 9 of the Hindu Marriage Act for restitution of conjugal rights may be dismissed.

7. Learned counsel for the husband submits that respondent/husband has paid a sum of Rs.5,00,000/- to the appellant/wife by way of demand draft, drawn on Karnataka Bank Ltd., Arsikere Branch dated 10.03.2023 in favour of the appellant/wife. The same is acknowledged by the learned counsel for the appellant/wife.

8. When this Court tried to persuade both parties for reunion of the marriage, though the wife agreed to continue in the marriage, the husband has not agreed for reunion and since both are majors, we cannot force them to join together.

9. In view of the above, we pass the following:

ORDER i. The appeal filed by the husband in MFA No.4430/2018 is hereby allowed.

ii. The appeal filed by the wife in MFA No.8707/2018 is hereby dismissed.

iii. The impugned judgment and decree dated 23.04.2018 in M.C. No.77/2016 passed by the Principal Judge, Family Court at Bangalore is hereby set-aside.

iv. Marriage between the parties (wife and husband) dated 06.12.2012 is dissolved.

v. Office is directed to draw up a decree in terms of the memorandum of settlement entered into between the parties.

vi. The copy of the memorandum of settlement shall be part and parcel of the decree.

Sd/-

JUDGE Sd/-

JUDGE MBM